

**MUNICIPAL BUILDING
2101 O'Neil Avenue
Cheyenne, WY 82001
<http://www.cheyennecity.org>**

**CITY COUNCIL MEETING
COUNCIL CHAMBERS
6:00 P.M.**

AGENDA

MARCH 12, 2012

1. CALL MEETING TO ORDER.

2. CALL ROLL.

3. PLEDGE OF ALLEGIANCE.

4. CONSENT AGENDA.

(All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.)

ACTION: _____

5.[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON FEBRUARY 27, 2012.

ACTION: _____ Approve _____

6. VOUCHERS.

ACTION: _____

7. ORDINANCE - 3RD READING - Amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established, and Section 17.08.040, Cheyenne City Map, of the Cheyenne City Code, by changing the zoning classification from P Public District to HR-2 High Density Residential-Developing District for Lot 1, Block 1, The Pointe, Sixth Filing, Cheyenne, Wyoming (located north of and adjacent to Dorothy Lane, west of Powderhouse Road). (PUBLIC SERVICES COMMITTEE)

ACTION: _____

8. ORDINANCE - 1ST READING - Amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established, and Section 17.08.040, Cheyenne City Map, of the Cheyenne City Code, by changing the zoning classification from MUB Mixed Use with Business Emphasis and MR-2 Medium Density Residential – Developing Districts to CB Community Business District for Lots 1-10, Block One, College Business Park, 3rd Filing, Cheyenne, Wyoming (located east of and adjacent to N. College Drive, between Laramie and Charles Streets). (SPONSOR - AMBER ASH)

ACTION: _____

9. ORDINANCE - 1ST READING - Amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established, and Section 17.08.040, Cheyenne City Map, of the Cheyenne City Code, by changing the zoning classification from CB Community Business District to HR-2 High Density Residential - Developing District for Lot 4, Block One, Gateway South, 3rd Filing, Cheyenne, Wyoming (located east of and adjacent to Walterscheid Boulevard, south of W. Fox Farm Road). (SPONSOR - AMBER ASH)

ACTION: _____

10. RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Country Homes Subdivision, Third Filing, a replat of Lot 4, Block 5, Country Homes Subdivision, Laramie County, Wyoming (located east of Cedar Avenue, between Grape and Peach Streets). (PUBLIC SERVICES COMMITTEE) (POSTPONED FROM 02-27-12)

ACTION: _____

- 11.[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for the Pointe, Sixth Filing, a replat of Lot 13, Block 10, The Pointe, Fifth Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of E. Four Mile and Powerhouse Roads). (PUBLIC SERVICES COMMITTEE)

ACTION: Adopt

- 12.[CA] RESOLUTION - Approving Water Service, by User's Agreement with Marvin Strubhar, 3408 Victoria Drive, Cheyenne, Wyoming. (FINANCE COMMITTEE)

ACTION: Adopt

- 13.[CA] RESOLUTION - Re-appropriating the Fiscal Year 2012 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 & 16-4-113. (SPONSOR - JIM BROWN)

ACTION: Refer to Finance Committee

- 14.[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for The Crossroads Center, Second Filing, a replat of a portion of Lots 2 and 4, and all of Lot 3, Block 2, The Crossroads Center, Cheyenne, Wyoming (located north of and adjacent to Greenway Street, east of College Drive). (SPONSOR - AMBER ASH)

ACTION: Refer to Public Services Committee

- 15.[CA] RESOLUTION - Granting, with conditions, an exception for development of a small wastewater system pursuant to the '201 Agreement' and authorizing the Mayor and City Clerk to execute a development agreement for property described as a tract of land in N1/2N1/2NE1/4NE1/4 of Section 11, Township 13 North, Range 67 West, of the 6th P.M. (a/k/a 4121 West 5th Street), Cheyenne, Laramie County, Wyoming. (SPONSOR - DR. MARK RINNE)

ACTION: Refer to Public Services Committee

16. LEASES/CONTRACTS/LEGAL:

- a) Wyoming Children's Trust Fund Grant Contract between the City of Cheyenne, Youth Alternatives, Special Friends, and Wyoming Department of Family Services, Protective Services Division, to provide Outreach Mentoring Program services. (FINANCE COMMITTEE) (POSTPONED FROM 02-27-12)

ACTION: _____

- b) Professional Services Letter of Intent between the City of Cheyenne and Kaiser and Company, Cheyenne, Wyoming, to refinance outstanding Series 2003 Revenue Bonds for the City Center Parking Structure. (FINANCE COMMITTEE)

ACTION: _____

- c)[CA] Purchase Agreement between the City of Cheyenne and the Housing Authority of the City of Cheyenne, for the purchase of City-owned real property and improvements, commonly known as 515 Morrie Avenue, 916 East 5th Street, and 922 East 5th Street, Cheyenne, Wyoming. (FINANCE COMMITTEE)

ACTION: Approve (revenue to the City \$4,441.72)

- d)[CA] Contract between the City of Cheyenne, Youth Alternatives, and Laramie County Community Partnership, Inc., for academic and enrichment activities for at-risk school-age youth at Carey Junior High School (21st Century Community Learning Centers Cohort Five grant funds).

ACTION: Refer to Finance Committee

- e)[CA] Contract between the City of Cheyenne, Youth Alternatives, and Laramie County Community Partnership, Inc., for academic and enrichment activities for at-risk school-age youth at Johnson Junior High School (21st Century Community Learning Centers Cohort Four grant funds).

ACTION: Refer to Finance Committee

- f)[CA] Agreement between the City of Cheyenne, Police Department, and Laramie County Sheriff's Department and Laramie County, Wyoming, for housing City prisoners at the Laramie County Detention Center.

ACTION: Refer to Finance Committee

17. CHANGE ORDERS/CONTRACT MODIFICATIONS:

- a)[CA] Contract Modification No. 2 to Contract No. 5496 between the City of Cheyenne, Engineering Department, and Ayres Associates for additional design services for the East Pershing Boulevard reconstruction project (Phase IV) (2003-2006, 2007-2010 1% Sales Tax, Board of Public Utilities, Federal Highway Administration funds). (FINANCE COMMITTEE)

ACTION: Approve (amount not to exceed \$21,175.00)

- b)[CA] Amendment No. 1 to Professional Services Agreement/Contract No. 5613 between the City of Cheyenne on behalf of the Cheyenne Metropolitan Planning Organization and Felsburg, Holt and Ullevig for South Greeley Highway Corridor Plan - Supplemental Budget Request.

ACTION: Refer to Finance Committee

- c)[CA] Contract Modification No. 2 to Contract No. 5697 between the City of Cheyenne and STC Construction Co., Cheyenne, Wyoming, for bridge repairs on the Westland Road Overlay and Improvements Project (2007-2010 1% Sales Tax).

ACTION: Refer to Finance Committee

18. CONSIDERATION OF BIDS:

- a)[CA] Consideration of Bid #R-25-12 for furnishing one new roll-off truck for the Sanitation Division from Peterbilt of Wyoming, Cheyenne, Wyoming. (FINANCE COMMITTEE)

ACTION: Accept bid (amount not to exceed \$139,993.00)

- b)[CA] Consideration of Bid #R-23-12 for furnishing stage drapery for the City of Cheyenne Civic Center.

ACTION: Refer to Finance Committee

- c)[CA] Consideration of Bid #R-30-12 for surplus sale of one Express Dual 1000 reel grinder, one Anglemaster 2000 bed knife grinder, and one Toro greens aerator for the City of Cheyenne, Parks and Recreation Department, Golf Division.

ACTION: Refer to Finance Committee

- d)[CA] Consideration of Bid #M-11-12 for annual Contract between the City of Cheyenne and Simon Contractor, Cheyenne, Wyoming, for annual Contract for furnishing aggregate for the Street and Alley Division (2007-2010 1% Sales Tax).

ACTION: Refer to Finance Committee

- e)[CA] Consideration of Bid #M-12-12 for annual Contract between the City of Cheyenne and Knife River, Cheyenne, Wyoming, for annual Contract for hot plant mix, asphalt tack oil and cold mix for the Street and Alley Division (2007-2010 1% Sales Tax).

ACTION: Refer to Finance Committee

- f)[CA] Consideration of Bid #M-13-12 for Contract between the City of Cheyenne, Parks and Recreation Department, and Chalk Buttes Landscaping, Inc., Douglas, Wyoming, for Lions Park Remediation project.

ACTION: Refer to Finance Committee

19. APPLICATIONS/LICENSES/PERMITS:

- a)[CA] Renewal of existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, microbrewery and winery permits) filed with the City Clerk's Office. The name of said applicant, type of license and description of premises which applicant desires to use as the place of sale are set forth as follows: Wigwam, Inc. d/b/a Redwood Lounge and Package Liquor, retail, 2105 E. Lincolnway; Cheyenne Vail Investments, Inc. d/b/a Gus & Jon's Crown Bar, retail, 222 West Lincolnway; Poor Richard's d/b/a Poor Richard's, retail, 2233 E. Lincolnway; W.W. Enterprises, Inc. d/b/a Les' Lamp Lounge and Drive-In Liquor, retail, 101 W. 6th St.; The Blue Bird, Inc. d/b/a Uncle Charlie's, retail, 6001 Yellowstone Road; Langhoff Enterprises d/b/a Two Bar Bowl, retail, 740 Carlson; Cadillac Ranch Bar, Inc. d/b/a Cadillac Ranch Bar, retail, 3307 Nationway; Fraternal Order of Eagles Aerie #128, ltd. retail, 1600 Thomes Ave.; B.P.O. Elks #660, ltd. retail, 100 E. 17th St.; W. E. Dinneen, Inc. d/b/a [to be determined], retail, 400 W. Lincolnway; KEG, Inc. d/b/a D.T.'s Liquor Mart & Tusker Bar, retail, 3310 Ridge Road; JKLL, Inc. d/b/a The Drunken Skunk, retail, 1617 Capitol Ave.; Twin Dragon Chinese Rest., Inc. d/b/a Twin Dragon, rest., 1809 Carey Avenue; South Side Bar, Inc. d/b/a Keg 'n Kork Liquors, retail, 822 Central Ave.; Rande's Ritz, LLC d/b/a Midtown Tavern, retail, 1303 E. Pershing Blvd.; Cheyenne Country Club, ltd. retail, 800 Stinner Road; F & G Corp. d/b/a The Green Door, retail, 301 E. Lincolnway; ENI, Inc. d/b/a Eagle's Nest, retail, 1101 W. Lincolnway; Outback Steakhouse of Florida, LLC d/b/a Outback Steakhouse, retail, 1626 Fleischli Parkway; Lambousis Revocable Trust d/b/a Mayflower, retail, 112 W. 17th St.; Four Winds, Inc. d/b/a Four Winds, retail, 1103 E. Pershing; EKG, Inc. d/b/a D.T.'s Package Liquor and Lounge, retail, 2121 E. Lincolnway; Alf in Wyoming Enterprise, LLC d/b/a Alf's Pub and Package Liquor, retail, 1622 E. 19th St.; Flatland Investments, LLC d/b/a Godfather's Pizza, rest., 5719 Yellowstone Road; Francis E. Self Post #6 d/b/a The American Legion Post #6, ltd. retail, 2001 E. Lincolnway; The Peaks Cafe II, LLC d/b/a The Peaks Cafe II at the Airport, rest., 300 E. 8th Ave.; F.E. Warren Post #1881 d/b/a V.F.W. Post #1881, ltd. retail, 2816 E. 7th St.; Knights of Columbus Council #801 d/b/a Casey's Club, ltd. retail, 507 W. 28th

St.; Blanne Enterprises, Inc. d/b/a Cool River Wine & Spirits, retail, 5225 Yellowstone Rd.; Re-o-na Sushi and Thai d/b/a Re-o-na Sushi Bar and Thai Cuisine, rest., 112 W. 17th St.; One East Sixteenth, LLC d/b/a TBD, retail, 1601 Central Ave.; Airport Golf Club, Inc., ltd. retail, 4801 Central Ave.; Katrina M. and Adam L. Howell d/b/a Scooter's Scoreboard Bar, retail, 507 E. Lincolnway; Cloud 9, Inc. d/b/a Cloud 9 Liquorland, retail, 1958 Dell Range Blvd. #C; Texas Roadhouse of Cheyenne, LLC d/b/a Texas Roadhouse, retail, 1931 Bluegrass Circle; HEJE, Inc. d/b/a Outlaw Liquors, retail, 4503 Western Way; KZ Corporation d/b/a Goofy's Tavern, retail, 2801 E. Lincolnway; Stillwater, Inc. d/b/a Mingles, retail, 1618 Stillwater Ave.; Prairie View Golf Club, ltd. retail, 3600 Windmill Road; Albany, Inc. d/b/a Albany Rest., Bar and Liquormart, retail, 1506 Capitol Ave.; Mehn, Inc. d/b/a Casa De Trujillo, rest., 122 W. 6th St.; S&W Properties, LLC d/b/a Vinos Wine and Spirits, retail, 453 Vandehei Ave., #190; The Plains Hotel Co., LLC d/b/a The Plains Hotel, resort, 1600 Central Ave.; Real Mexican Foods, Inc. d/b/a Los Amigos Rest., rest., 620 Central Ave.; Avanti, Inc. d/b/a Dell Range Liquor, retail, 3806 Dell Range Blvd., Suite 4; Pizza Hut on Yellowstone, Inc, rest., 5320 Yellowstone Rd.; Hotel West I, LP d/b/a Holiday Inn Cheyenne, resort, 204 W. Fox Farm Rd.; AMVETS Post #10, ltd. retail, 3839 E. Lincolnway; Moreno & Reyes, LLC d/b/a Guadalajara Family Mexican Rest., rest., 1745 Dell Range Blvd.; Pizza Hut of Cheyenne d/b/a Pizza Hut/Wing Street, rest., 4503 Western Way; Morris House Enterprises, Inc. d/b/a Morris House Bistro, rest., 2114 Warren Ave.; Bighorn Associates, LC d/b/a Chili's Southwest Grill and Bar, retail, 1320 Dell Range Blvd.; Appaloosa Enterprises, LLC d/b/a Sanford's Grub & Pub, retail, 115 E. 17th St.; Maria Ramos d/b/a El Charrito Mexican Restaurant, rest., 216 E. 17th St.; Concord Neighborhood Corp. d/b/a Applebee's Neighborhood Grill and Bar, retail, 1401 Dell Range Blvd.; Delilah R. Pineda d/b/a Estevan's Cafe, rest., 1820 Ridge Road; GMRI, Inc. d/b/a Red Lobster #639, retail, 1923 Dell Range Blvd.; Dynasty Café, Inc. d/b/a Dynasty Cafe, rest., 600 W. 19th St.; Mondello Corporation d/b/a L'Osteria Mondello, rest., 1507 Stillwater; China Buffet, Inc. d/b/a China Buffet, rest., 1958 Dell Range Blvd.; RGLM, Inc. d/b/a Avanti Italian Rest., rest., 4620 Grandview Ave.; Shadows Brewing Co., LLC d/b/a Shadows Pub & Grill, rest., 115 W. 15th St., #1; Let 'er Buck Investment Group, LLC d/b/a Steamboat's Territorial Steakhouse, retail, (address not yet issued) to be located on Gardenia between Yellowstone and El Camino Real in Cathedral Commons; Nagle-Warren Mansion, LLC d/b/a Nagle-Warren Mansion LLC, rest., 222 East 17th St.; OC Cheyenne, LLC d/b/a Old Chicago Rest., retail, 1734 Meadowland Dr.; Sandra J. Innis d/b/a 2 Doors Down, rest., 118 E. 17th St.; Soo Hyun Choi, LLC d/b/a Tokyo Bowl, rest., 1829 Dell Range Blvd.; Jerry P. Innis d/b/a Pizzeria Venti, rest., 112 E. 17th St.; Shadows Brewing Co., LLC d/b/a Shadows Pub & Grill, microbrewery, 115 W. 15th St.; Suite 1901, Freedoms Edge Brewing Co., LLC d/b/a Freedoms Edge Brewing Co., microbrewery, 301 W. Lincolnway; Freedoms Edge Brewing 2, LLC d/b/a Freedoms Edge Brewing Co., microbrewery, 1509 Pioneer Ave.; CLLC d/b/a The Winery at 1901, winery, 1901 Central Ave.; OG of Cheyenne, Inc. d/b/a The Olive Garden Italian Rest., bar & grill, 1536 Dell Range Blvd.; Moreno and Aguilar, LLC d/b/a Hacienda Guadalajara, bar & grill, 317 E. Lincolnway; O'Jackson's, Inc. d/b/a Jackson's All American Sports Bar & Grill, bar & grill, 1121 Old Town Lane; Suite 1901, CLLC d/b/a Suite 1901, bar & grill, 1901 Central Ave. (FINANCE COMMITTEE)

ACTION: Approve

20. APPOINTMENTS:

- a) Appointment of James W. Hearne, Tucker Fagan and William C. Beaman, to the City of Cheyenne, Wyoming-Laramie County, State of Wyoming Joint Powers Board for Frontier Park improvements.

ACTION: _____

21. ANNOUNCEMENT/REPORTS/MOTIONS:

- a) Announcment of Appointment of Catherine Nicholas and Maida Wedell to the Arts In Public Places Committee to be confirmed March 26, 2012.

22. OTHER BUSINESS:

23. ADJOURN.